प्रधान आयुक्त सीमाशुल्क (निवारक) का कार्यालय,

OFFICE OF THE PRINCIPAL COMMISSIONER OF CUSTOMS (PREVENTIVE)

तलाशी एवं आसूचना विभाग, नवीन सीमाशुल्क भवन,

RUMMAGING AND INTELLIGENCE DIVISION, NEW CUSTOM HOUSE,

बेल्लार्ड एस्टेट, मुंबई – 400 001

BALLARD ESTATE, MUMBAI – 400 001.

Date: .02.2018

F. No. SD/INT/RTI-50/2017-18

20/02/2018

ISSUED BY SPEED POST

To,

Shri P G James,
I/2/44, Icon Tower,
Hazira, Surat – 394270.

Gentleman,

Sub: Transfer of RTI application filed by Shri PG James under RTI Act, 2005.- Reg.

The above mentioned RTI Application filed by Shri PG James seeking information under RTI Act, 2005, was transferred to this office under section 6(3) of the RTI Act, 2005 on 24.01.2018 from the Chief Commissioner's Office, Mumbai Zone –III and was received in this office on 30.01.2018.

The requisite information sought as per point no. 1 to 5 of the said RTI application, may be treated as **'NIL'** in respect of R&I Division of the Office of the Principal Commissioner of Customs (Preventive).

Appeal, if any, against the above decision of the CPIO may be preferred within thirty days of the receipt of this letter under Section 19(1) of the RTI Act, 2005. The details of the Appellate Authority are given as under:-

Name : Shri Sachin Gusia

Designation: Joint Commissioner of Customs (Preventive)

First Appellate Authority, RTI, R& I Division.

Address : 11th floor, New Custom House, Ballard Estate, Fort, Mumbai 400 001.

20/2/18

(Tariq Mabood)
Dy. Commissioner of Customs (P) &
Central Public Information Officer
RTI Cell, R & I Division

Copy to: CPIO, Deputy Commissioner of Customs
CCO- Zone III.

ISSUED

20/02/18

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मुख्य सीमाशुल्क आयुक्त का कार्यालय, मुंबई अंचल - III,

OFFICE OF THE CHIEF COMMISSIONER OF CUSTOMS, MUMBAI ZONE-III,

छत्रपती शिवाजी अंतरराष्ट्रीय हवाई पत्तन, टर्मिनल- 2, लेवल- II, सहार, अन्धेरी (पूर्व), मुंबई - 400 099.

CHHATRAPATI SHIVAJI INTERNATIONAL AIRPORT, TERMINAL-2, LEVEL-II, SAHAR, ANDHERI (EAST), MUMBAI-99.

E-mail ID: dczone3@mumbaicustoms3.gov.in

F. No S/II-41(06)/CCO-III/RTI/2014 / 3528 Date: 24 .01.2018

To

The CPIO, RTI Cell (Export), O/o the Commissioner of Customs (Export), Air Cargo Complex, Sahar, Andheri (East), Mumbai 400 099.	The CPIO, O/o the Asstt. Commissioner of Customs (P), M & P Wing, 2nd floor, Everest House, 100 Marine Drive, Marine Lines, Mumbai 02.
The CPIO, O/o the Commissioner of Customs (Airport), RTI Cell, 3rd Floor, Avas Corporate Point, Marol Naka, Off Andheri-Kurla Road, Andheri (East), Mumbai 400 059.	The CPIO, 12 th floor, R & I Division, New Custom House Annexe, Ballard Estate, Mumbai 400 001.
The CPIO, O/o theCommissioner of Customs (II), Airport Special Cargo (HQ), RTI Cell, 5th Floor, Avas Corporate Point, Marol Naka, Makhwana Lane, Andheri (East), Mumbai 400 059.	The CPIO, Asstt. Commissioner of Customs (Gen), O/o the Commissioner of Customs (Gen), Air Cargo Complex, Sahar, Andheri (E), Mumbai - 400099
The CPIO, Asstt.Commissioner of Customs (Import), Air Cargo Complex, Sahar, Andheri East, Mumbai 400 099	

Sir/Madam,

Sub: **Transfer of RTI application filed by Shri PG James under RTI Act, 2005-Reg.**

Please find enclosed letter F. No. 275/26/2017-CX 8A dt. 16.01.2018 received from Senior Analyst (legal) alongwith RTI request no. CBECE/R/2017/81383, CBECE/R/2017/81398, and CBECE/R/2017/81410.

As the information sought by the applicant is closely connected to your office, the copy of the said application alongwith enclosures is being forwarded under the provision of Section 6(3) of the Right to Information Act, 2005.

You are requested to furnish the requisite information/details directly to the applicant, if permissible under the RTI Act, under intimation to this office.

In case the information sought is not held by you, the RTI application be transferred to the concerned PIO and inform to the applicant.

प्रधान सीमाशुल्क आयुक्त (निवारक)
Principal Commissioner of Custom (P)
Received 2018 प्राप्त किया
Sign.....
नया सीमाशुल्क भवन, मुंबई-1,
New Custom House Mumbai-1,

Yours faithfully,

(Jitendra Tiwari)
CPIO, Deputy Commissioner of Customs,
Chief Commissioner's Office,
Mumbai Zone III.

Encl : As above (04pages)

Copy to:

1. Senior Analyst (legal)
   Central Board of Excise and Customs, Legal Cell,
   5th Floor, Hudco-Vishala Building, Bhikaji Cama Place,
   R. K. Puram, New Delhi-66

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By Fax/Speed Post

CHIEF COMMISSIONER OF CUSTOMS MUMBAI - III
26
22 JAN 2018
CSI AIRPORT, MUMBAI - 99.

F. No. 275/26/2017-CX 8A
Ministry of Finance
Department of Revenue
Central Board of Excise & Customs
(Legal Cell)
****

Received
6
23 JAN 2018
प्राप्त किया

'C' Wing, 5th Floor, HUDCO-VISHALA Building
Bhikaji Cama Place, R. K. Puram,
New Delhi-66: dated the 16.01.2018

To,

All CPIOs, O/o the Principal Chief Commissioners/
Chief Commissioners of CGST, Central Excise & Customs.

Subject: - Information sought under Right to information Act, 2005 by Shri PG James.

Sir,

Please find enclosed herewith a copy of action histories of RTI request Nos. CBECE/R/2017/81383, CBECE/R/2017/81398 & CBECE/R/2017 /81410 of Shri PG James for further necessary action at your end.

2. In this regard, it is informed that the information as requested in the RTI application does not pertain to the Legal Cell, CBEC. Hence, the application is being forwarded under Section 6(3) of the Right to Information Act, 2005.

Yours faithfully,

Encl: - As above

(Harsh Vardhan)
Senior Analyst (Legal)
Ph: 011-26195405

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ACTION HISTORY OF RTI REQUEST No.CBECE/R/2017/81383

Applicant Name PG JAMES

Text of Application. It is learnt that Writ Petitions were filed by tax payers in various High Courts in the matter of failure to provide for mechanism to utilize accumulated Education Cess and Secondary and Higher Education Cess in balance as on 1.6.2015 and lack of provision to transfer such accumulated credit balance to GST wherein CBEC and/or Union of India, The Secretary, Ministry of Finance, Department of Revenue is a Respondent. Please furnish the following information 1. Tax payer wise/High Court wise details of such Writ Petitions 2. Amount of credit involved, if available 3. Any legal opinion received in this regard Please send copy 4. Any cross objection filed in this regard. Please send any one copy 5. Any judgement delivered disposing the case.Please send copy

Reply of Application

SN.	Action Taken	Date of Action	Action Taken By	Remarks
1	RTI REQUEST RECEIVED	27/12/2017	Nodal Officer	DOREV/R/2017/81525
2	REQUEST FORWARDED TO CPIO	28/12/2017	Nodal Officer	Forwarded to CPIO(s) : (1) Mashood ur Rehman Farooqui, JC
3	REQUEST TRANSFERRED TO OTHER CPIO	09/01/2018	Mrinal Mishra JC-(CPIO)	Transferred to CPIO(s) : (1) Harsh Vardhan, Legal

Transfer these RTI to all CPIO of CC office

16/1

ASO

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ACTION HISTORY OF RTI REQUEST No.CBECE/R/2017/81398

Applicant Name PG JAMES

Text of Application It is learnt that Writ Petitions were filed by tax payers in various High Courts in the matter of failure to provide for mechanism to utilize accumulated Education Cess and Secondary and Higher Education Cess in balance as on 1.6.2015 and lack of provision to transfer such accumulated credit balance to GST wherein CBEC and/or Union of India, The Secretary, Ministry of Finance, Department of Revenue is a Respondent. Please furnish the following information 1. Tax payer wise/High Court wise details of such Writ Petitions 2. Amount of credit involved, if available 3. Any legal opinion received in this regard Please send copy 4. Any cross objection filed in this regard. Please send any one copy 5. Any judgement delivered disposing the case.Please send copy

Reply of Application

SN.	Action Taken	Date of Action	Action Taken By	Remarks
1	RTI REQUEST RECEIVED	28/12/2017	Nodal Officer	CBODT/R/2017/81553
2	REQUEST FORWARDED TO CPIO	01/01/2018	Nodal Officer	Forwarded to CPIO(s) : (1) Mashood ur Rehman Farooqui, JC
3	REQUEST TRANSFERRED TO OTHER CPIO	09/01/2018	Mrinal Mishra JC-(CPIO)	Transferred to CPIO(s) : (1) Harsh Vardhan, Legal

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ACTION HISTORY OF RTI REQUEST No.CBECE/R/2017/81410

Applicant Name PG JAMES

Text of Application It is learnt that Writ Petitions were filed by tax payers in various High Courts in the matter of failure to provide for mechanism to utilize accumulated Education Cess and Secondary and Higher Education Cess in balance as on 1.6.2015 and lack of provision to transfer such accumulated credit balance to GST wherein CBEC and/or Union of India, The Secretary, Ministry of Finance, Department of Revenue is a Respondent. Please furnish the following information 1. Tax payer wise/High Court wise details of such Writ Petitions 2. Amount of credit involved, if available 3. Any legal opinion received in this regard Please send copy 4. Any cross objection filed in this regard. Please send any one copy 5. Any judgement delivered disposing the case.Please send copy

Reply of Application

SN.	Action Taken	Date of Action	Action Taken By	Remarks
1	RTI REQUEST RECEIVED	29/12/2017	Nodal Officer	DOREV/R/2017/81556
2	REQUEST FORWARDED TO CPIO	01/01/2018	Nodal Officer	Forwarded to CPIO(s) : (1) Mashood ur Rehman Farooqui, JC
3	REQUEST TRANSFERRED TO OTHER CPIO	09/01/2018	Mrinal Mishra JC-(CPIO)	Transferred to CPIO(s) : (1) Harsh Vardhan, Legal

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